

Once the Labor Commissioner has issued a decision after a Berman hearing, either party may “appeal” the decision to the superior court, which reviews the claim de novo. (Labor Code § 98.2, subd. (a).) Although denoted as an “appeal,” the trial de novo “is neither a conventional appeal nor review of the Labor Commissioner’s decision, but is rather a de novo trial of the wage dispute.” (*Murphy, supra*, 40 Cal.4th at p. 1116.) The superior court has discretion to permit the employee to assert additional related wage claims beyond those asserted before the Labor Commissioner. (*Id.* at pp. 1116–1120.) “The decision of the commissioner is ‘entitled to no weight whatsoever, and the proceedings are truly “a trial anew in the fullest sense.”’” (*Post v. Palo/Haklar & Associates* (2000) 23 Cal.4th 942, 948.)

The de novo proceeding in the superior court is initiated by filing an “appeal” and paying a first paper filing fee. (Lab. Code, § 98.2, subd. (a); see Gov. Code, § 70611.) Thus begins a civil “action” that culminates in “a full new trial in the superior court according to the rules and procedures applicable.” (*Sales Dimensions v. Superior Court* (1979) 90 Cal.App.3d 757, 762, quoting *Buchwald v. Katz* (1972) 8 Cal.3d 493, 502.) The superior court “hears the matter, not as an appellate court, but as a court of original jurisdiction, with full power to hear and determine it as if it had never been before the labor commissioner.” (*Murphy, supra*, 40 Cal.4th at pp. 1116–1117.) In fact, “the appeal of the commissioner’s decision to the superior court ... nullifies the decision, and the superior court conducts a new trial of the wage dispute.” (*Arias v. Kardoulias* (2012) 207 Cal.App.4th 1429, 1435.)

Such a de novo proceeding in superior court falls within the definition of an “action” or “civil action.” (See Code Civ. Proc., § 22 [defining “action” as “an ordinary proceeding in a court of justice by which one party prosecutes another for the declaration, enforcement, or protection of a right, the redress or prevention of a wrong, or the punishment of a public offense”]; *id.*, § 30 [defining “civil action” as one “prosecuted by one party against another for the declaration, enforcement or protection of a right, or the redress or prevention of a wrong”].)

Defendants argue that “[t]he ‘appeal by a DLSE defendant is functionally equivalent to a Superior Court ‘Answer’ filed by that defendant.” (Motion at 4:2-3.) In support, Defendants rely on their own counsel’s declaration and the proposed Notices of Appeal. Nowhere do Defendants cite to any authority that permits the Court to treat a Notice of Appeal as a pleading subject to Code of Civil Procedure section 473(a). And even if it were, the Court does not find any basis to add a supposed defendant that was not a party to the underlying matter appealed.

Because the Court concludes that the Notice of Appeal is not an Answer within the meaning of the California Code of Civil Procedure, it need not reach Plaintiffs’ arguments that they would be prejudiced by the amendment.

The motion is **DENIED**.

9. 9:00 AM CASE NUMBER: C25-00756
CASE NAME: JINLINAG LI VS. SNORKEL AI INC.
HEARING IN RE: JOINDER TO HIREART INC.'S MOTION TO COMPEL ARBITRATION
FILED BY: SNORKEL AI INC.
TENTATIVE RULING:

See Line 10.

10. 9:00 AM CASE NUMBER: C25-00756

CASE NAME: JINLINAG LI VS. SNORKEL AI INC.

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: HIREART INC

TENTATIVE RULING:

Before the Court is a motion by defendant HireArt, Inc. to compel arbitration and stay the proceedings, and a joinder in the motion filed by defendant Snorkel AI. For the reasons set forth, the motion is **GRANTED**. Plaintiff's claims against defendants HireArt, Inc. and Snorkel AI shall be referred to arbitration, and the action shall be **STAYED** pending completion of the arbitration, except for periodic case management conferences for the parties to apprise the Court regarding the status of the arbitration.

Background

In his second amended complaint filed on October 14, 2025 ("2AC"), Plaintiff alleges that he was jointly employed by defendants Snorkel AI, Inc. and HireArt, Inc. pursuant to the Independent Contractor Agreement dated January 7, 2025 ("ICA"), a copy of which is attached to his 2AC as Exhibit A. He alleges a cause of action for breach of contract against HireArt, a cause of action for "breach of oral/implied in fact contract" against Snorkel, and claims against HireArt and Snorkel as joint employers under the Labor Code for failure to pay him wages, wait time penalties, failure to provide accurate wage statement, misclassification as independent contractor, and intentional infliction of emotional distress.

Defendant HireArt filed a motion to compel arbitration of Plaintiff's claims alleged in the 2AC against both HireArt and Snorkel and to stay the proceedings in the case pending completion of the arbitration. Co-defendant Snorkel AI has filed a joinder in the motion. Plaintiff opposes the motion and the joinder.

Procedures for Enforcement of Arbitration Agreement

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as waiver, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (See also *Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Once the existence of an arbitration agreement is established, the burden is on the party opposing